

25NWLC19105 25NWLC19105

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-03

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Case Number: 25NWLC19105 Hearing Date: September 3, 2026 Dept: Y

25NWLC19105: CKS PRIME INVESTMENTS LLC vs ANGEL L WILLIAMS

Tentative Ruling:

The Court has read and considered the moving papers filed by Defendant Angel Williams ("Defendant"), and her supporting declaration, the opposing papers filed by Plaintiff CKS Prime Investments, LLC ("Plaintiff"), and the reply papers filed by Defendant.

In her Motion, Defendant requests to vacate the judgment entered by the Court on June 17, 2026. Defendant argues that due to a calendaring error Defendant did not appear for trial. Defendant also argues that Plaintiff failed to provide Notice of Trial to Defendant, which was ordered by the Court on April 21, 2026. The Court takes judicial notice of its Minute Order on April 21, 2026 in which Plaintiff was ordered to give notice of the trial date.

Pursuant to Code of Civil Procedure § 473(b), the Court has authority to relieve, on such terms as are just, a party or party's legal representative from a judgment taken against the party because of mistake, inadvertence, surprise and/or excusable neglect. Here, Defendant has submitted a declaration under penalty of perjury stating that her failure to appear for trial was due to a calendaring error and due to Plaintiff's failure to provide her with notice of the continued date of trial. The Court finds that Plaintiff's failure to appear for trial was due to "mistake, inadvertence, surprise and/or excusable neglect."

The Court GRANTS Defendant's Motion for Order Vacating Judgment. The Court resets this case for a non-jury trial on November 2, 2026 at 8:30 a.m. in Department Y.

Plaintiff to give notice.